

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD.

COMPLAINANT,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC. AND

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENT.

**MEMORANDUM OF LAW IN SUPPORT OF
COMPLAINANT’S MOTION TO STAY PROCEEDING**

Complainant China United Lines, Ltd. (“China United” or “Complainant”) submits this Memorandum of Law in support of its Motion to Stay this Proceeding (“Motion”).

INTRODUCTION

On June 6, 2025, the Presiding Officer issued an Order Partially Granting Respondents’ Amazon.com Services LLC, Amazon Logistics Inc. and Beijing Century Joyo Courier Service Co., Ltd.’s (collectively “Respondents”) (together with Complainant, the “Parties”) Motion to Dismiss (“Order”) (Dkt. 23). The Order dismissed Counts II-V of the Amended Complaint, leaving Count I pending before the Presiding Officer. Now, Complainant has today filed an appeal of the

Order (“Appeal”).

Complainant respectfully submits that it would be an inefficient use of the Parties’ time and the Commission’s judicial resources to move forward with discovery while the Appeal is pending. Accordingly, Complainant respectfully moves for an Order staying this proceeding until Complainant’s Appeal has been decided by the Commission.

ARGUMENT

The Presiding Officer has broad authority to manage the course of a proceeding. 46 C.F.R. § 502.25(b)(4). This authority is similar to the power afforded to federal judges to control their dockets.

[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.

Landis v. N. Am. Co., 299 U.S. 248, 254 (1936).

In deciding whether to stay a proceeding, the judge to whom that proceeding is assigned must balance the court’s interest in judicial economy and any possible hardship to the parties. *United States SEC v. Deloitte Touche Tohmatsu CPA Ltd.*, 928 F. Supp. 2d 43, 50 (D.D.C. 2013) (citing *Landis*). Here, a balancing of interests weighs in favor of a stay via Complainant’s Motion.

In its Amended Complaint, Complainant asserted allegations on five separate counts of violations under Sections 41102(a) (“Count I”), 41102(c) (“Count II”), 41104(a)(1) (“Count III”), 41104(a)(2) (“Count IV”), and 46 C.F.R. 530.10(e)(2)(ii) (“Count V”) (Dkt. 11). After the Order by the Presiding Officer, only Count I remains before the Presiding Officer and will proceed to the discovery phase. All four other counts are presently dismissed and being appealed before the Commission. While the discovery issues for the five counts overlap to some extent, the issues on discovery for the four dismissed counts are materially different from those for Count I, which remains before the Presiding Officer. Specifically, Count I will involve extensive discovery into

the pretextual, fraudulent nature of Amazon's actions, while discovery for Count V, for example, would involve extensive discovery on whether Amazon's termination of the Service Contract functioned as a "cancellation" within the meaning of the regulation, and further still discovery on Counts II-IV will involve substantial discovery into the status of Amazon and its affiliates as a common enterprise for the purposes of jurisdiction. If the Presiding Officer determines that a stay is not warranted, discovery will continue on only Count I. However, should the Commission issue a decision reversing the dismissal of any or all of Counts II-V on Appeal, the parties will be required to undertake discovery twice for this proceeding, leading to potential duplication of efforts and resources. Complainant respectfully submits that it is in the best interest of the parties and preservation of judicial economy to stay discovery on Count I pending a determination by the Commission on Counts II-V.

Furthermore, any delay in this proceeding pending the Commission decision on the Appeal will not prejudice or harm either party. On the contrary, a stay would significantly save the time and resources of both parties from having to duplicate discovery efforts.

CONCLUSION

For the reasons set forth herein, the Presiding Officer should issue an order staying further proceedings until a decision on the Commission issues a decision on Complainant's appeal.

Dated: June 30, 2025

By: /s/ Vincent J. Foley
Vincent J. Foley
HOLLAND & KNIGHT LLP
787 7th Avenue
New York, NY 10019
212-513-3357
vincent.foley@hklaw.com

*Counsel for Complainant China
United Lines, Ltd.*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 30th day of June 2025, a true and correct copy of the foregoing Memorandum of Law in Support of Motion to Stay Proceeding was served via email on:

Michael F. Scanlon
John Longstreth
Christiana K. Goff
K&L GATES LLP
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000
(202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
christi.goff@klgates.com

Counsel for Respondents

/s/ Ashleigh T. Higgs
Ashleigh T. Higgs